

1 HOUSE BILL NO. 167

2 INTRODUCED BY J. DARLING, W. MCKAMEY, S. VANCE

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REMOVING THE REQUIREMENT TO POST ABSENTEE LISTS
5 AT POLLING LOCATIONS; AMENDING SECTION 13-13-233, MCA; AND PROVIDING AN IMMEDIATE
6 EFFECTIVE DATE."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 **Section 1.** Section 13-13-233, MCA, is amended to read:

11 **"13-13-233. Issuing and recording absentee ballots -- certificate to election judges.** (1) Absentee
12 ballots must be official numbered paper ballots beginning with ballot number 1 and following consecutively
13 according to the number of applications for absentee ballots.

14 (2) The election administrator shall keep a record of all absentee ballots issued.

15 (3) When the election administrator delivers the voted absentee ballots pursuant to 13-13-232(1),
16 the election administrator shall also provide a certificate stating:

17 (a) the ballot numbers of the absentee ballots mailed or transmitted pursuant to 13-13-214, 13-21-
18 106(3)(a), and 13-21-224, delivered pursuant to 13-13-229, or marked in person pursuant to 13-13-222;

19 (b) the number of ballots to be reserved for late absentee voting pursuant to 13-13-211(2); and

20 (c) the names of the electors within the precinct to whom the ballots were provided.

21 (4) ~~The chief election judge shall post in a conspicuous location at the polling place a list of the~~
22 ~~names of electors appearing on the certificate required under subsection (3)."~~

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24 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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